

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Michael Terrell
Judge of the Superior Court
County of Los Angeles
900 Third Street
San Fernando, CA 91340

Re: Sheeley, Amy Nicole
CDC No.: X23712
Case No.: PA052227-04
Date of Sentence: 1/18/2007

Dear Honorable Michael Terrell:

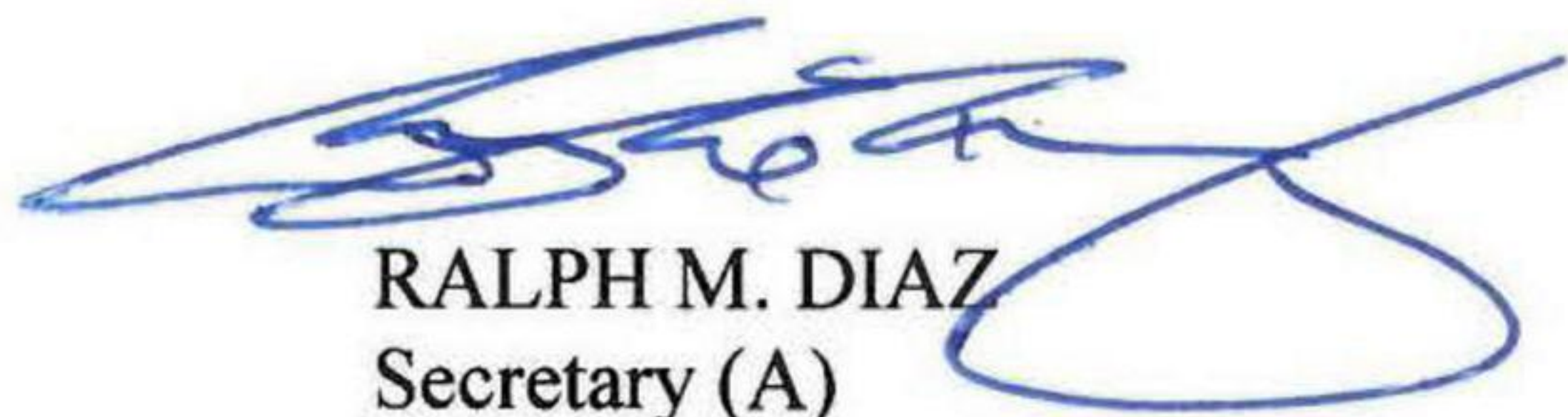
The purpose of this letter is to provide the court with authority to resentence Amy Nicole Sheeley pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Sheeley was sentenced in 2007, and was convicted of section 245, subdivision (A)(1), Assault w/deadly weapon. The trial court sentenced inmate Sheeley on 1/18/2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Sheeley's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Sheeley's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that she be resented in accordance with the cited authority.

Sincerely,

A handwritten signature in blue ink, appearing to read "Ralph M. Diaz", written over a blue circular stamp or seal.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

X23712 ✓

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES - NORTHVALLEY DISTRICT					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SHEELEY, AMY NICOLE		DOB: 09-12-1982	PA052227-04 ✓ -A		
AKA:			-B		
CII NO.: A12192504			-C		
BOOKING NO.: 008612813		☒ NOT PRESENT	-D		
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT					
DATE OF HEARING 10-19-2017		DEPT NO. NVD		JUDGE MICHAEL TERRELL ✓	
CLERK CHRISTOPHER IRWIN		REPORTER LYNN EVANS		PROBATION NO. OR PROBATION OFFICER X-1850068 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE FRANCES YOUNG, DA		COUNSEL FOR DEFENDANT REBECCA MEYER, DPD ☒ APPOINTED			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
_____ (number of pages attached)

☐ Additional counts are listed on attachment _____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO Item 6)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED		
						JURY	COURT	PLEA									YRS.	MOS.	
08	PC	245(A)(1)	Assault w/deadly weapon	2005	01 / 18 / 17			X	U									4	0
09	PC	245(A)(1)	Assault w/deadly weapon	2005	01 / 18 / 17			X	M	X								(3	0)
10	PC	136.1(C)(1)	Dissuade a witness by force	2005	01 / 18 / 17			X	M		X							3	0
					/ /														
					/ /														
					/ /														

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
08	PC 186.22(B)(1)(C)	10 YRS	PC 12022.7(A)	3 YRS			13 0
09	PC 12022.7(A)	3 YRS					(3) (0)
10	PC 186.22(B)(1)(A)	S					0 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)

☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole/probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 20 0

Attachments may be used but must be referred to in this document.



PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: SHEELEY, AMY NICOLE

PA052227-04

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 1000.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 1000.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ 8740.00 ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☒ *Victim name(s), if known, and amount breakdown in item 13, below. ☒ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$ 20.00 per PC 1465.8. e. Conviction Assessment: \$ _____ per GC 70373. f. Other: \$ _____ per (specify): _____

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify): DNA PER PC 296

11. REGISTRATION REQUIREMENT: ☐ per (specify code section): _____

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: _____ Suspended: _____ Served forthwith: _____

13. Other orders (specify): *Victim Restitution of \$8740.00. Each defendant is responsible for the restitution, jointly and severally.

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	678	590	088
B			
C			
D			
Date Sentence Pronounced		Time Served in State Institution	
✓ 01 18 2007			

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin: WHITE.

15. EXECUTION OF SENTENCING IMPOSED

- a. ☐ at initial sentencing hearing
b. ☐ at resentencing per decision on appeal
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☒ other (specify): Per Judicial Order Issued: 10-19-2017.

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☐ other (specify): _____

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

H. Marquez

DATE

10-24-2017